

STRATEGIES AND TACTICS

TORTS

COVERAGE AND ASSUMPTIONS

You will have 25 scorable¹ Torts questions on the exam. The NCBE says that about half of the Torts questions will be based on category II (Negligence) in the Coverage Outline below, and the other half will be based on the remaining categories — I (Intentional torts), III (Strict liability and products liability), and IV (Other torts).

Important note: You should answer Torts questions according to *principles of general applicability*. You should assume that there is no applicable statute unless one is specified. You should assume that *survival actions and wrongful death claims are available*. Also, assume that *joint and several liability*, with *pure* comparative negligence, is the relevant rule, unless you're told otherwise.

COVERAGE OUTLINE

The following outline of coverage for the Torts portion of the MBE was adopted by the Bar Examiners for all MBEs given on or after February 2019. This is the most up-to-date outline of coverage released by the Bar Examiners as we go to press (September 2022), and your substantive study of Torts should therefore be centered around it.

I. Intentional torts

- A. Harms to the person, such as assault, battery, false imprisonment, and infliction of mental distress; and harms to property interests, such as trespass to land and chattels, and conversion
- B. Defenses to claims for physical harms
 - 1. Consent
 - 2. Privileges and immunities: protection of self and others; protection of property interests; parental discipline; protection of public interests; necessity; incomplete privilege

II. Negligence

- A. The duty question, including failure to act, unforeseeable plaintiffs, and obligations to control the conduct of third parties
- B. The standard of care
 - 1. The reasonably prudent person: including children, physically and mentally impaired individuals, professional people, and other special classes
 - 2. Rules of conduct derived from statutes and custom
- C. Problems relating to proof of fault, including *res ipsa loquitur*
- D. Problems relating to causation
 - 1. But for and substantial causes
 - 2. Harms traceable to multiple causes
 - 3. Questions of apportionment of responsibility among multiple tortfeasors, including joint and several liability
- E. Limitations on liability and special rules of liability
 - 1. Problems relating to “remote” or “unforeseeable” causes, “legal” or “proximate” cause, and “superseding” causes

1. That is, you'll get 25 questions that count in your score. In addition, you'll get another 3 or 4 questions that won't count, and that are used by the NCBE for validation purposes. You'll have no way to know which ones count or not. Therefore, you'll see, and need to try to answer, 28 or 29 Torts questions in total.

2. Claims against owners and occupiers of land
3. Claims for mental distress not arising from physical harm; other intangible injuries
4. Claims for pure economic loss
- F. Liability for acts of others
 1. Employees and other agents
 2. Independent contractors and nondelegable duties
- G. Defenses
 1. Contributory fault, including common law contributory negligence and last clear chance, and the various forms of comparative negligence
 2. Assumption of risk

III. Strict liability and products liability

Common law strict liability, including claims arising from abnormally dangerous activities, and defenses to such claims; claims against manufacturers and other defendants arising out of the manufacture and distribution of products, and defenses to such claims

IV. Other torts

- A. Claims based on nuisance, and defenses
- B. Claims based on defamation and invasion of privacy, defenses, and constitutional limitations
- C. Claims based on misrepresentations, and defenses
- D. Claims based on intentional interference with business relations, and defenses

WHAT TO EXPECT

Torts (and especially negligence) is a subject you can't afford to ignore when you study. The three most common types of Torts questions on the MBE are:

1. Questions asking you the plaintiff's best claim;
2. Questions asking you the defendant's best defense; and
3. Questions asking you whether the plaintiff will prevail.

The most common of these three is the third type; this also represents the most difficult type of question, because you're frequently **not told the nature of the claim**. Instead, you're told only that the plaintiff asserted a claim for damages against the defendant, and you're left to figure out what the claim is (e.g., is it based on negligence, or on strict liability?). Handling this kind of question is addressed under "Exam Tactics" below.

STUDY STRATEGIES

1. Memorize this test for negligence.

You may remember the four elements of a negligence claim from your first year of law school: duty, breach, causation, and damages. This simple list is perfectly correct but not terribly helpful on the MBE. You'll find it far easier to analyze negligence questions if you memorize this test:

A defendant must (1) fail to exercise such care as a reasonable person in his position would have exercised; (2) his conduct must be a breach of the duty to prevent the foreseeable risk of harm to anyone in the plaintiff's position; and (3) this breach must cause the plaintiff's damages.

If you find this a bit cumbersome, keep in mind that **about seven percent of the entire** MBE will cover **only** negligence; thus, your grasp of this one definition could mean the difference between passing and failing!

2. Remember the purpose of *res ipsa loquitur*.

Remember that *res ipsa loquitur* is merely one means of proving a negligence claim: It establishes a *prima facie* case of negligence **only where direct evidence of the circumstances of the injury is lacking**. If you have direct evidence of how a result came about, ***res ipsa loquitur* will not apply**.

In order for *res ipsa* to establish a *prima facie* case of negligence, these three elements have to exist: (1) the event causing injury would normally not have occurred in the absence of negligence; (2) the defendant was in exclusive control of the instrumentality that likely caused the injury; and (3) the plaintiff must not

have voluntarily contributed to the event causing his injury. Perhaps you remember the classic case of the human toe in the sealed can of food, where negligence was established by applying *res ipsa loquitur*. Keep this example in mind when deciding whether *res ipsa* exists.

3. Remember what different causes of action do.

You need to know not only the elements of various torts, but also to which kinds of facts these elements **apply**. Because Torts questions frequently don't tell you on what facts the plaintiff is basing her claim, it's important that you be able to determine that from the facts of the question. Although you'll get clues from the answer choices as to what the plaintiff's claim must be, your knowledge of the facts to which various elements apply will help you analyze questions quickly and eliminate incorrect responses.

4. Defamation.

Defamation questions pop up on the MBE a little more often than you might guess — you're likely to face two or three of these. Although much of defamation law is straightforward, here are some elements to keep in mind:

A. Special damages.

There's only one situation where a plaintiff must prove **special damages** as part of his defamation claim: when his claim is based on **slander** and is for a slanderous statement not falling within any of the following four *slander per se* categories:

1. statements accusing someone of a crime;
2. statements alleging that someone has a foul or loathsome disease;
3. statements adversely reflecting on a person's fitness to conduct her business or trade; and
4. statements imputing serious sexual misconduct to someone (almost always to a woman).

If a plaintiff's claim doesn't fall within one of these four categories, he must prove special damages or his claim will fail. (Special damages are **pecuniary** [economic] damages, e.g., a lost job, inheritance, gift, customer.) If a plaintiff's claim is for libel, or slander *per se*, she doesn't have to prove special damages. This is a sneaky issue because it's easy to overlook — thus, a perfect basis for an MBE question.

B. Publication.

The Bar Examiners tend to focus a lot on the requirement of "**publication**," i.e., that the defamatory statement be **communicated** to someone other than the plaintiff. When you're reading a question involving an allegedly defamatory statement, you should, therefore, look carefully at the facts to see whether the speaker of the statement **spoke in front of someone else**. If he didn't make his statement to anyone other than the person claiming defamation, then there's no **actionable** defamation.

One aspect of publication that the Bar Examiners like to test is that **strict liability** as to publication is not permitted; the plaintiff must show that the defendant either **intended** to communicate the statement to a third person or **negligently** publicized the statement to third persons. Watch out for situations where a third person learns of the statement **through no fault of the defendant**; in this situation, the plaintiff **cannot** recover damages for the defendant's statement. For instance, suppose that a defendant sends a plaintiff a letter falsely accusing him of molesting the defendant's teenage son. The plaintiff, who receives the letter at work, crumples it up and tosses it in the wastebasket. An hour later, a fellow office worker of the plaintiff, realizing that he threw an important document into the same wastebasket by mistake, goes through the wastebasket looking for his document. In the process, he finds the defendant's letter, reads it, and tells some of his coworkers what it says; as a result, the plaintiff loses his job. If the plaintiff sues the defendant for defamation, **the plaintiff will lose**, even though he's been harmed, because the others heard the defamatory statement **through no fault of the defendant**.

C. No strict liability regarding statement's falsity.

Even if the plaintiff is not a public figure, under prevailing state-law principles **defamation is never a strict liability offense!** Instead, the plaintiff will have to prove, at the very least, **negligence** with respect to the statement's truth. So if a defendant **reasonably (but erroneously) believed the statement was true**, he **can't** be liable for negligence, and he therefore can't be liable for defamation, even if the plaintiff is a private figure suing over a private matter.

Of course, if the plaintiff *is* a public figure, and the issue is of public interest, the plaintiff has more to prove; in order to prevail, he has to show that the defendant **knew** the statement was false or evidenced a **reckless disregard** for its truth or falsity; proving negligence wouldn't be enough. (And even the defendant's **unreasonable failure to investigate** won't be enough to prove reckless disregard: only if the defendant in fact "**entertained serious doubts**" about the statement's truth will publication constitute reckless disregard of truth or falsity.)

5. Don't confuse defamation and invasion of privacy.

There's an important reason for remembering this: **Truth** is not a defense to invasion of privacy, but it's a **complete** defense to defamation.

Remember that invasion of privacy is not a tort **itself**, but, rather, is an "umbrella" tort covering four separate, distinct claims: (1) appropriation of plaintiff's personality for a defendant's own commercial advantage; (2) intrusion on a plaintiff's affairs or seclusion; (3) publication of facts that place a plaintiff in a false light; and (4) public disclosure of private facts about a plaintiff. (Here's a mnemonic: **A FLIP** [Appropriation, False Light, Intrusion, Private].) Thus, you could say a statement's **truth** is the essence of the damage in most invasion-of-privacy claims, and its **falsity** is the linchpin of a defamation claim.

6. Remember the sources of strict liability.

Strict liability can be the source of a great deal of frustration on the MBE. You will frequently be tempted to choose it as a response even where it doesn't apply. The easiest way to avoid this trap of thinking strict liability is available when it's not is to remember not just the **elements** of strict liability, but also its **sources**. If a fact pattern doesn't address those sources, then **strict liability cannot be the basis of a defendant's liability!**

Like negligence, strict liability requires proof of these four elements: duty, breach, causation, and damages. Unlike negligence, strict liability involves an **absolute** duty, **not** a duty of reasonable care. Again, like negligence, this definition won't help you very much in analyzing MBE questions. What you should keep in mind is that there are **only three ways** a defendant can be strictly liable (i.e., liable without regard to fault or intent):

1. by **keeping a wild animal**;
2. by conducting an **abnormally dangerous activity**; or
3. by **selling a defective product** (strict **products liability**).

Strict liability can also be imposed by case law or statute, but, if this arises in an MBE question, the question will have to supply the statute or cases, and you'd just have to recognize and apply what you're given.

The first of the three general sources — animals — is easy to spot. If someone has a skunk, chimpanzee, elephant, or other **exotic pet** (and it needn't be one you'd consider **dangerous**; it need only be non-domesticated), and the pet causes damage of the sort that makes the species wild, the owner will be liable, no matter how careful he was about keeping the thing penned up. That's because, with strict liability, it doesn't matter how careful one is — the duty is **absolute**. Also, even if a pet is domesticated, if the owner has reason to know it's dangerous (e.g., it's bitten someone before), then the owner will be liable.

The second source, an abnormally dangerous activity, is one to handle carefully. It's easy to mistake any dangerous activity for an abnormally dangerous one. You may find it helpful to remember that abnormally dangerous activities are ones that **cannot be performed with complete safety no matter how much care is taken — that's why they're a source of strict liability**. Common abnormally dangerous activities include the use of pesticides, the use of explosives, blasting and excavating. (By contrast, transmission of electricity is not generally considered abnormally dangerous.)

The third source — defective products — is just garden-variety strict products liability (also known simply as "products liability"). Here's our list of all the important things you need to know about strict product liability for the MBE:

1. DEFECT: The product must have been defective;
2. CONTROL: The defective condition must have existed when the product left the defendant's control;
3. CHANGES: The product must not have been expected to undergo significant changes before it got to the user (or, it must not actually undergo significant changes);

4. **BUSINESS:** The seller must be in the business of selling the product (that is, he can't be a casual seller or a user, even one who uses the product while performing a paid service that does not incorporate a transfer of the product);
5. **CAUSATION:** Damage must result from the defect (a defendant is liable for any harm to persons or property);
6. **NO PRIVACY:** The defendant's duty extends to anyone foreseeably endangered by the product (this means there's no **privity requirement**).

If you take the first letter of each of these elements, and add a vowel, you get a mnemonic: **CCC BoND** (**C**ontrol; **C**hanges; **C**ausation; **B**usiness, **N**o privity; **D**efect). If you can remember the elements without a mnemonic, fine — the point is, if you can remember them, you're unlikely to be fooled by a strict product liability question.

In products liability cases, strict liability can be the **easiest** type of claim to prove, because the defendant can be liable for defects created by those who came **before** him in the distribution chain, and the plaintiff doesn't have to prove any lack of care. Also remember that, aside from products liability, strict liability is difficult because it applies only to a very limited number of situations.

No matter what type of strict liability question you're examining, don't forget the **proximate cause** requirement. Remember what strict liability was designed to do: compensate for damage caused by the extraordinary risks created by certain enterprises. If the consequences are outside the extraordinary risk that **created** absolute liability, the defendant won't be liable. For instance, say an animal enthusiast keeps an elephant, Jumbo, as a pet. One day, Jumbo roams over to the neighbor's barn next door, falls through some rotted floorboards, clambers out, and goes home. Later, the neighbor goes to the barn, and, in the darkness, falls through the hole. The neighbor's injuries would be considered sufficiently outside the risk that makes wild elephants a wild species that the owner will not be strictly liable.

7. Products liability.

Remember two things about products liability that you might otherwise overlook:

A. It's not the only basis of liability for harm caused by products.

You must remember that there are actually **three different ways** in which someone who makes or sells a product can be held liable for injuries the product causes. They are: (1) **strict products liability**; (2) **breach of warranty**; and (3) **negligence**. Although products liability is by far the most important of the three, you can't completely forget about warranty and negligence on the MBE.

As for warranty, you should remember that it's a **separate theory** of recovery for a defective product — it's **not an element of strict products liability**. The Bar Examiners sometimes throw a warranty answer choice into a question that assumes you're suing in strict liability. Watch out! It's probably a distractor. Also, remember the two types of warranties: express and implied. Express warranties do show up on the MBE (e.g., a vendor furnishes a sample of the products to be sold; that constitutes an express warranty that the products will match the sample). When an express warranty is present, a commonly tested aspect is that a plaintiff who successfully sues someone for breach of warranty is entitled to the **benefit of the bargain**.

As for negligence, remember that it's **always available as an alternative theory** when a product hurts someone; therefore, in products liability questions, you should be aware that negligence might be the correct answer choice. A defendant can't be liable for product-related negligence, though, unless, at a minimum, the defect was **discoverable** by reasonable means.

One common MBE situation occurs when the purchaser of a defective, unreasonably dangerous product **learns about an available safety device** but **fails to install it**. If the device is cheap, and the danger from not installing the device is great, then the purchaser may be found to be at fault for failing to install the device. But in a comparative-fault jurisdiction (which is what you're told to assume by default on the MBE), that plaintiff-negligence will at most **reduce, not eliminate**, the plaintiff's recovery. That's true whether the suit is brought in negligence or strict liability.

B. Privity.

When a product liability claim is based on either negligence or strict liability, **privity is not an issue**, because **anyone** who could foreseeably be endangered by the product can make a claim.

C. Liability for others' fault.

An important feature of strict products liability, as discussed in #6, above, is that the defendant needn't have created the defect — the defect merely has to be in existence **when the product leaves his control**. Thus, a retailer can be liable for a manufacturer-created defect, even if the retailer didn't know about it and couldn't have discovered it. This seems counterintuitive until you remember that the retailer won't necessarily be **ultimately** liable; he can seek indemnity from his supplier, who can seek indemnity from his supplier, and so on, until the one originally responsible for creating the defect is held liable. The retailer is, nevertheless, a potential defendant.

Under negligence, by contrast, the defendant himself **must** have failed to exercise due care in order to be held liable — he can't be held liable for the negligence of those preceding him in the distribution chain. Be careful, though. A defendant's negligence can take a variety of forms. Watch out for any behavior that is characterized as **unreasonable**. Thus, if defendant didn't inspect and a reasonable person would have, or if he **did** inspect but didn't find a defect when a **reasonable** inspection would have discovered it, he'll be liable, but only because his own conduct has been unreasonable.

EXAM TACTICS

1. Questions asking for a “best argument.”

When faced with this type of question, you're likely to look for **all** the arguments that will support the choices given you, so you'll fail to look to focus on the only correct answer; instead, look at these questions this way: Only one of the answer choices will provide a successful claim or defense. The other three will **all** be flawed in some way, because they either don't apply to the facts or don't correctly apply the law.

2. Questions asking what the plaintiff will need to prove and in which the claim is identified (e.g., nuisance, defamation).

In this kind of question, only one answer choice will supply the correct level of proof. The others will **overstate** it or **understate** it. An answer choice **overstates** the proof required if, for instance, it overstates the level of fault that the plaintiff must show. An answer choice understates the proof required if, for instance, it's not specific enough, or it's not relevant. **Whenever** a claim is mentioned, think of the elements that claim requires, as well as relevant defenses, and keep those in mind as you analyze each choice.

3. Identifying claims when a question doesn't.

As you'll remember from the strategies section, Torts questions frequently don't tell you the basis for the claim (e.g., nuisance, negligence). There are, however, three important categories that are easy to define:

1. intentional tort;
2. negligence; and
3. strict liability.

If you apply the rules on strict liability that we gave you in the “Study Strategies” section, you can easily identify where strict liability applies. Intentional torts are inherently simple to identify. That will leave you in most cases with a negligence claim.

You'll get additional help in identifying the claim if you look at the reasoning of the answer choices, because at least one will contain a material element of the correct claim. Language such as “reason to know” in answer choices is the language of negligence, as that's determined objectively. Also, in the question **itself**, the facts will suggest what the plaintiff's claim must be. If there's no intent stated or indicated, you won't base a claim on an intentional tort. If there's no basis for strict liability, you wouldn't claim it. That leaves negligence.

It's important to identify the claim specifically, because incorrect answer choices are often wrong because they are based on something that is **not relevant to a plaintiff's claim** but is relevant to **another**, similar claim. If you've correctly identified the claim, you can't be fooled this way.

Here's an example of this kind of question:

A mother went to her local gym to work out, and left her two-year-old son in a nursery provided by the gym while she did so. There were 15 other children of various ages in the nursery and only one attendant, in contrast to the two attendants that were usually on duty. About 30 minutes later, while the attendant was looking the other way, the two-year-old son suddenly started to cry. The attendant found him lying on his back, picked him up, and called his mother. It was later discovered that the son had suffered a skull fracture.

If a claim is asserted against the gym on the son's behalf, will the son prevail?

- A. Yes, because the gym owed the child the highest degree of care.
- B. Yes, because a two-year-old is incapable of contributory negligence.
- C. No, unless the gym or its employees failed to exercise reasonable care to assure the son's safety.
- D. No, because the mother assumed the risk by leaving her son in the nursery.

As you can see, you're not told what the claim is for. If you apply the intentional tort/strict liability/negligence analysis to the facts here, you will see that there's no intentional tort; also, child-care is not a source of strict liability; that leaves only negligence as a basis for a claim. You know that the linchpin of a negligence claim is **the defendant's unreasonable conduct**; so, if the gym's employee behaved reasonably, the gym can't be liable. This analysis, coupled with the fact that Choices (B) and (D) rely on defenses that don't correspond with the facts and that Choice (A) states incorrectly the degree of care owed, should lead you to the best response: (C).

4. Where "if" is the modifier in an answer choice.

Analyze these answer choices this way:

1. The reasoning of the answer choice must be **plausible** on the facts, i.e., there can't be anything in the facts suggesting that an alternative is true.
2. The answer choice must resolve a significant issue.
3. The result must be consistent with the reasoning.

5. Where "because" is the modifier in an answer choice.

If the corresponding question asks who will prevail, ask yourself: "Would these facts be necessary to make the defendant liable?" Here's an example:

Two hotel guests got into a heated argument while on the hotel's rooftop patio bar. The bartender and a waiter tried unsuccessfully to calm the guests down. One of the guests threw a chair, which went over the railing of the rooftop, striking and injuring a pedestrian on the sidewalk below. The hotel owner was not on the premises at the time of the incident. The pedestrian sued the hotel owner for damages for her injuries.

Will the pedestrian prevail in her claim against the owner?

- A. Yes, because a property owner is strictly liable for acts on his premises if such acts cause harm to persons using the adjacent public sidewalks.
- B. Yes, if the person who threw the chair cannot be identified.
- C. No, because the owner had no personal knowledge of the conduct of the hotel guests.
- D. No, if the trier of fact determines that the hotel employees had taken reasonable precautions to prevent such an injury.

Look at Choice (C). It uses the modifier "because," so it would have to state an element required to make the defendant liable. Although you're not told the nature of the claim here, using the reasoning from Exam Tactic #3, above, you can determine that the claim must be for negligence. Furthermore, if the owner is to be held liable, it must be due to **vicarious liability** for the actions of his employees. In order for the employees to be liable for negligence, they must have failed to exercise the care a reasonable person in their position would have exercised. Could this be true without the owner's having personal knowledge of the conduct of the hotel guests? Sure — employers are constantly held liable for torts of their employees when the employer has no personal knowledge of those torts, or of the underlying situation that required the employees to behave with reasonable care. (That's the nature of *respondeat superior*.) Thus, (C) can't be the best response, because it offers the owner's lack of personal knowledge of the underlying situation as the basis for the pedestrian's failure to prevail.

Because we're talking about modifiers, look at the other three answer choices. Choice (A) — another answer choice using "because" — is not the best response; if you apply the rules of strict liability from the strategies section, you know that a property owner cannot be held strictly liable for the kind of conduct

in this question. Choice (B), using the modifier “if,” also isn’t correct, because, although it is plausible on the facts, it wouldn’t result in the owner’s being held liable. Last, consider Choice (D). Remember, an individual can’t be held liable for negligence if his conduct was reasonable. Under these facts, it’s possible that all employees behaved reasonably, and, if they did, the owner couldn’t be held liable (because *respondeat superior* would only kick in if at least one individual employee was the negligent cause of the harm). That makes (D) the best response.

6. Where “unless” is the modifier in an answer choice.

If an answer choice states that “The plaintiff will not prevail **unless** X . . .,” then there must be no **other** way than X for the plaintiff to succeed. In other words, if X doesn’t exist, the defendant isn’t liable.

This reasoning need only be plausible on the facts. As an example, look at the bowling-alley question in Tactics, above, where the correct response, (C), uses “unless” as a modifier. If you apply this reasoning to it, you’d ask yourself: If the bowling alley and its employees exercised reasonable care, is there any way the alley could be liable? There isn’t, since reasonable behavior precludes liability for negligence. Thus, (C) must be correct.

7. Negligence questions: a shortcut.

In the “Study Strategies” section, above, we gave you a definition to apply to negligence. Here’s a shortcut to the correct response in some circumstances.

Look at the defendant’s conduct and see if it was **reasonable**. If it was, defendant **cannot be negligent, because negligence requires unreasonable behavior**. Here’s an example:

A customer fell and injured himself when he slipped on a banana peel while shopping at a grocer’s store. The banana peel was fresh and clean except for a mark made by the heel of the customer’s shoe. In an action brought by the customer against the grocer, these are the only facts in evidence.

Should the trial judge permit the case to go to the jury?

- (A) No, because the customer had an obligation to watch where he stepped.
- (B) No, because there is not a reasonable basis for inferring that the grocer knew or should have known of the banana peel.
- (C) Yes, because it is more likely than not that the peel came from a banana offered for sale by the grocer.
- (D) Yes, because the grocer could foresee that a customer might slip on a banana peel.

This question is actually designed to test your knowledge of *res ipsa loquitur*. (The correct answer is (B), because *res ipsa*, the only plausible basis for liability, doesn’t apply since falling on a “fresh and clean” banana peel is not an event that is ordinarily caused by the negligence of someone.) But even if you didn’t spot that the question was about *res ipsa*, you should be able to figure out the correct answer by elimination, using our “negligence requires unreasonable behavior” shortcut. The suit would have to be in negligence, since there’s no basis for either intentional-tort or strict liability. Nothing in these facts suggests any negligence by any store employee (since the “fresh and clean” state of the banana peel is compatible with the peel’s having dropped moments before the customer fell, too soon for it to be negligent of the store’s employees not to have removed the peel). So you’d be down to just the choices in which the customer loses, which are (A) and (B). (A) is pretty clearly wrong (since in the worst case for the plaintiff, his lack of care would not nullify his right to go to the jury; it would just lead to the jury’s hearing the case and reducing the plaintiff’s recovery by his degree of contributory fault). So you’d get to (B) by default, even on this superficial “was there unreasonable behavior?” analysis.

8. Handling causation issues.

Causation is one of the trickiest issues on the entire MBE. Here are some pointers to help you analyze causation issues correctly.

The most important thing to remember is not to be intimidated by multiple causes. It’s easy to be overwhelmed by fact patterns where there are multiple causes of a plaintiff’s damage. Remember:

THERE CAN BE MORE THAN ONE CAUSE IN FACT.

The fact that someone other than the defendant contributed to a plaintiff’s damages, **doesn’t, in itself, relieve the defendant of liability** if the defendant’s conduct was a substantial factor in causing a plaintiff’s damages. Here’s an example:

A bicyclist was riding along a busy commercial street. The cyclist entered an intersection against a red light, in violation of the traffic ordinance. Just at that moment, a pedestrian, without looking for traffic, walked into the intersection at a right angle to the cyclist's path. Simultaneously, the driver of a van, speeding, collided with the cyclist from the rear, causing the cyclist to run into and injure the pedestrian.

If the pedestrian asserts a claim against the van driver, the most likely result is that the pedestrian will

- A. prevail, because the van driver's violation of the speed limit makes the driver strictly liable for all injuries caused thereby.
- B. prevail, because the probable purpose of speed limit was to safeguard pedestrians using crosswalks.
- C. not prevail, because the pedestrian assumed the risk of injury when he stepped into the crosswalk without looking for traffic.
- D. not prevail, because the cyclist's conduct was the actual cause of the pedestrian's harm.

Look at Choice (D): Since it says that the cyclist's conduct was "the" actual cause of the pedestrian's harm, it's implying that there could only be one cause-in-fact of the harm here, so that the van driver's conduct **can't** be considered. This isn't correct, because a defendant's conduct can be a **substantial factor** in creating a plaintiff's injuries (which is enough for liability) at the same time as there are additional "actual" causes. So you'd know just from the reference to "the" actual cause that (D) can't be correct. (Choice (B) is correct.)

Another important point:

INTERVENING CAUSES WILL SUPERSEDE ONLY IF THEY WERE UNFORESEEABLE.

Ask yourself this: Were the plaintiff's injuries within the risk created by the defendant's act? Alternatively, if the defendant was negligent, what were the risks his negligence created? This is the **heart** of proximate cause. Remember that **intervening** causes relieve the original tortfeasor of liability only if the **results of the intervening causes are unforeseeable**. Think of intervening causes as insulation, and decide whether they create enough of an insulating barrier to justify the plaintiff's not recovering.

Normally on the MBE, the intervening act *won't* create a sufficient barrier to prevent the plaintiff from recovering against the original tortfeasor. For instance, if D1 puts P in jeopardy, and D2 negligently injures P while trying to *rescue* him, D2's negligence won't get D1 off the hook unless D2 has behaved really bizarrely — "danger invites rescue," so D2's negligent attempt at rescue will likely be viewed as a foreseeable consequence of D1's placing P in danger.

There's one more important point to remember here:

DON'T BE THROWN BY THE FACT THAT THE INTERVENING ACTOR MAY ALSO BE LIABLE.

The negligence of intervening actors won't relieve the original tortfeasor of liability unless the results of that intervening negligence are unforeseeable. Under joint-and-several-liability (which you're told to assume by default), if the negligent acts of the original tortfeasor and of some later tortfeasor combine to produce an individual harm, the plaintiff can pick which tortfeasor to sue, and can recover his *entire damages* from that person. The mere fact that the plaintiff could have sued someone else **as well** doesn't exonerate the defendant chosen for suit (whose remedy is a contribution or indemnity claim against the missing tortfeasor).

FINALLY — REMEMBER THAT THERE CAN'T BE PROXIMATE CAUSE WITHOUT CAUSE IN FACT.

If conduct is the proximate cause of damage, it must be a cause in fact as well. If there aren't any intervening acts, proximate cause must exist (as long as the defendant was negligent, of course). In fact, the only time you should be concerned with proximate cause is when **remote possibilities** are involved.